

GRIEVANCE RESPONSE

at

**Step 3 of the Memorandum of Understanding Between the
City of Oakland and Oakland Police Officers Association**

Grievant: Sergeant Francisco Negrete #8956

Violations of
Manual of Rules Section 370.27-1
(Use of Physical Force)
and
Manual of Rules Section 285.00-1
(Supervisors - Authority and Responsibilities, Class 1)

Internal Affairs Case No. 18-0249

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I. INTRODUCTION

Underpinning this case are allegations of misconduct by six Oakland Police Department (OPD) sworn personnel¹ who were involved in a shooting on March 11, 2018 that took the life of Joshua Pawlik (Pawlik). As is extensively detailed in a companion Report, allegations of excess use of force lodged against the four Department members who discharged their weapons in that incident were ultimately sustained, resulting in their termination. Sergeant Francisco Negrete (Sgt. Negrete) was held not only to have also engaged in an excess use of force, but to have committed a “Class 1” violation of Manual of Rules (MOR) 285.00 (e.g., “Failure to Supervise, Class 1”), and was similarly terminated. A lower level (“Class 2”) allegation of Failure to Supervise in violation of MOR 285.00 was sustained against Lieutenant Alan Yu (Lt. Yu), who was Incident Commander. Lt. Yu was initially demoted for his role in the incident, but his discipline was later reduced to a five-day suspension.

Over the 11 months following the shooting, the allegations against Sgt. Negrete and other involved sworn personnel were reviewed by the City of Oakland’s (City’s) Internal Affairs Division (IAD), the Alameda County District Attorney’s Criminal Investigations Division (CID), the City Citizen’s Police Review Agency (CPRA), the OPD Executive Force Review Board, federal Compliance Director Robert Warshaw, and Skelly Officer Michael Gennaco. The companion Report, supplemented by extensive documentation generated during the internal review processes, is provided under separate cover and incorporated by reference herein. It contains findings and conclusions supporting an overall “exonerated” finding on the excess use of force allegations against the four officers who discharged their weapons in the incident. Those findings and conclusions are essential reading prior to review of this Report.

This separate Report regarding Sgt. Negrete is written because (1) the Failure to Supervise allegations against Sgt. Negrete are discrete, and (2) for the excess use of force allegations, his role as both a Sergeant and a shooter in the incident was different than that of the four officers in ways that require additional analysis.²

¹ Lieutenant Alan Yu; Sergeant Francisco Negrete; and Police Officers Brandon Hraiz, Josef Phillips, Craig Tanaka, and William Berger. These members of the Department are collectively referenced herein as “officers” or “Members.”

² Also see Government Code § 832.7 (confidentiality of personnel records).

II. SUMMARY OF RECOMMENDED CONCLUSIONS

I understand that the findings and conclusions in this Report shall be treated as recommendations. With that understanding, my conclusions are as follows:

Alleged Excess Use of Force (violation of MOR 370.27): Exonerated

Alleged Failure to Supervise (violation of MOR 285.00): Not Sustained at Class 1
Sustained at Class 2

Appropriate Discipline: Determination of the appropriate level of discipline for the sustained Class 2 violation of MOR 285.00 (Failure to Supervise) is best reserved for the appointing power. However, if the City determines not to refer this issue back to the appointing authority, I recommend a 30-day suspension.

III. SUMMARY OF THE PROCEEDINGS

As is described in the companion Report, the use of force allegations springing from Pawlik's death resulted in a long and elaborate review process. That process commenced on the evening of the shooting on March 11, 2018, and culminated on May 8, 2020 with dismissals of the four officers and Sgt. Negrete, and a five day suspension for Lt. Yu. The companion Report did not address the allegations against Sgt. Negrete, leaving that discussion for the instant Report.

At all steps, the reviewers uniformly held that Sgt. Negrete should be Exonerated as to the allegation of Excess Use of Force. The reviewers also uniformly held that Sgt. Negrete violated MOR 285.00, but differed on whether that violation should be deemed "Class 1" or "Class 2." The following chart summarizes the holdings at each step as they relate to that issue.

Entity	Class of Offense
IAD	Class 2
EFRB (2-1 vote)	Class 1
Chief Kirkpatrick	Class 2
CPRA	Class 2
Compliance Director	Class 1
Police Commission Discipline Committee	Class 1
Skelly Officer	Class 1

IV. FACTS – SGT. NEGRETE’S SUPERVISORY RESPONSIBILITIES

A. Sgt. Negrete’s Role

Incident Commander Lt. Yu assigned Sgt. Negrete as the Designated Arrest Team (DAT) supervisor for this incident. As was discussed in more detail in the CPRA Report, Sgt. Negrete’s duty as DAT supervisor included formulating a plan to resolve the situation peacefully by detaining Pawlik in a safe manner if possible; ensuring that his plan included possible contingencies if Pawlik did not follow commands; assigning officers to carry out the tasks within the plan; following OPD’s policies and rules; and closely supervising the activities of subordinates consistent with MOR 285.14 (Supervisors – Authority and Responsibilities / Supervision), making corrections where necessary. In his interview with the IAD on August 16, 2018, Sgt. Negrete confirmed that he was the one who formulated the plan for the DAT in this case, and that he was the supervisor who assigned individual duties for each member based on his belief they were mature, experienced, and reliable.

B. DAT Goals

As mentioned previously, one of the primary goals of a DAT is to resolve the situation peacefully. For this reason, officers are trained to avoid forcing a confrontation, but to remain prepared to respond to an exigent circumstance if it arises. Because of the need to respond to contingencies, alter the plan, and react to exigent circumstances if they arise, DAT supervisors are reminded to stay engaged continually throughout the search or arrest situation, stay physically present, and continually assess all needed resources, officer positioning and assignments, and the manner in which officers are going to make an arrest.

There are three general contingencies that every DAT plan should address: (1) taking the suspect into custody, (2) preventing escape, and (3) bridging the gap in case of some sort of emergency. The DAT is the “what if” squad. This means that if you were to ask, “What if the subject does this,” the DAT’s job is to have formulated a plan for that eventuality. A DAT supervisor must recognize the need for many possible contingencies, as well as the need to build flexibility into any plan. A good plan cannot simply rely on the outright immediate surrender of the suspect without conflict, as appears to have been the situation in this case.

C. Sgt. Negrete’s DAT Plan

As documented in PDRD recordings (see CPRA Investigation at p. 120 (19:59)), Sgt. Negrete described his DAT plan as “Once the BearCat gets here we’re going to do some announcements, Code 3, siren, announcement, Code 3, siren. If there’s no response, we’re going to thump him with the beanbag. If there’s a response, we’re going to challenge him. OK. We’re going to bring him back to the BearCat, handcuff him, obviously unarmed. Right. Once we thump him,

then we're probably going to go to a Taser. We'll have someone stand up there with a Taser, and come down and Tase him. . . . If that doesn't work, then we'll finally come up with a shield or two." Later, Sgt. Negrete was heard saying that if the subject was not compliant, he would "get thumped right away." (CPRA Investigation at p.147.)

D. Serious Deficiencies in Sgt. Negrete's DAT Plan

As outlined in the IAD Report, the EFRB Report and CPRA Investigation, there were serious issues with Sgt. Negrete's DAT plan and his actions as DAT supervisor. His response to the scene, analysis of the situation, and set up of the DAT appeared to be adequate for an initial response to an active critical situation, where the initial primary goal was to awaken the individual, gain his attention and cooperation, and/or ascertain his condition. However, he made five major mistakes and, within each of those, additional errors that were more minor in scope. To quote the CPRA findings (p. 33):

First, Sgt. Negrete's plan was not clear overall. Secondly, critical contingencies and steps were missing. Third, the plan did not properly take into account the actual facts presented in this situation. Fourth, Sgt. Negrete failed to remain in a supervisory role, and properly supervise those under his command. Fifth, Sgt. Negrete failed to assist in the proper sequestration of officers and not discuss the shooting.

1. Lack of a Clear and Comprehensive Plan

Sgt. Negrete did not establish a clear and comprehensive plan for the key contingency that materialized in this case: what to do if Pawlik woke up. On his PDRD, Sgt. Negrete can be heard saying to Lt. Yu that if Pawlik wakes up "we'll deal with him." (Negrete PDRD 3:55.) Sgt. Negrete did not, however, assess or specifically explain how to "deal with" Pawlik if that contingency occurred. This was extremely problematic. As the CPRA investigator stated (p. 23):

[T]hose in charge of this incident, Sgt. Negrete and Incident Commander Lt. Yu, basically set up an extremely limited response scenario for Pawlik to escape deadly force: wake up, understand what was going on, release the weapon, and through it all, don't move the gun in any significant way that could be interpreted as more of a threat than it already is.

The CPRA investigator further noted (p. 36):

Sgt. Negrete's plan of basically giving Pawlik one option if he woke on his own was problematic. Sgt. Negrete expected Pawlik to comprehend orders, drop the

gun and surrender. If he moved the gun upwards even if by accident, and even if trying to comply, it could have been considered to be a threat. Sgt. Negrete never talked about with the officers whether any level of raising or moving the gun in advance would be acceptable. It is one thing that the law allows officers legally to respond to a perceived threat. It is another to at least discuss a range of possible ideas for seeking a peaceful solution or using some restraint if it is still safe to do so.

The CPRA also observed that in the absence of a plan (p. 33):

There would not reasonably be time to “deal” with Pawlik and set up a new plan if he woke up and was confused, uncooperative, or ran. If there were steps or orders that were possible to effectively and safely take Pawlik into custody, they had to be worked out in advance, and every officer had to be informed of the contingencies so that any misstep by Pawlik would not trigger a deadly reaction or place others in danger.

The extended time available to Sgt. Negrete for planning before the DAT engaged with Pawlik is highly germane. As Sgt. Negrete was on scene for approximately one-half hour before Pawlik woke up, most notably while waiting a significant amount of time for the arrival of the BearCat, he had plenty of time to plan. Sgt. Negrete’s failure to take advantage of that opportunity led to improperly assigned team members, mistakes of fact, and the issuance of unclear and inconsistent second-by-second instructions during the event itself. Per the CPRA findings, Sgt. Negrete is heard saying (presumably to Sgt. Webber, who at the time had the less-lethal bean-bag shotgun in his possession), “once this is all set up, you’re going to thump him” (Negrete PDRD 1:16). “Once this is all set up” begs the question of what “this” was. It was also inconsistent with Sgt. Negrete’s plan to first use verbal challenges and loud noises to awaken Pawlik. Moreover, Sgt. Negrete had originally asked Officer Phillips if he had a Taser, , but later assigned Officer Phillips to use the bean-bag shotgun instead. After that assignment, no person with a Taser was put in place or given any instructions. When and under what circumstances a Taser would or could be utilized was left unplanned and unsaid. Sgt. Negrete said in his interview following the shooting that Sgt. Webber was “Taser,” but this is inconsistent with Sgt. Webber being “announcer” on the BearCat PA system and no plan for being “Taser” can be heard discussed with Sgt. Webber in the available recordings.

Lack of planning also led to muffled commands and obvious confusion. Officers are taught in patrol procedures training that a single officer should be designated to give commands. Commands to safely position and ultimately secure a subject are first taught in defensive tactics and reinforced in patrol procedures. Initially, Sgt. Negrete called out to the officers on scene, “Hey guys, if he goes alert, I’ll be talking, okay?” But later, Sgt. Negrete told Sgt. Webber that

Sgt. Webber would make announcements instead. Sgt. Negrete is seen on PDRD patting Sgt. Webber on the shoulder, and saying to him, “If he wakes up, give announcements.” Sgt. Negrete can also be heard on PDRD going over with Sgt. Webber that he “needs to tell the subject not to move if he wakes up and then to tell the subject after he understands, to put his hands up.” Once Pawlik actually woke up, however, Sgt. Negrete himself jumped in immediately (as many officers do) and started giving commands. Sgt. Negrete never delineated his “talker” role from the “announcements” role.

A review of the available video and audio data capturing the moments after Pawlik awoke readily shows the consequence of Sgt. Negrete’s inadequate planning and failure to communicate a clear and comprehensive plan. Everyone, including Sgt. Negrete, immediately engaged the suspect – mostly with lethal force options – and began yelling commands at Pawlik that only added confusion to the situation and narrowed the possible responses. During his initial interview with Internal Affairs, Sgt. Negrete said, “He was not obeying my commands. At this point, I’m thinking of other options for less-lethal, but it evolved so quickly that that didn’t happen.” Instead, when Pawlik awoke, four rifle officers and one bean-bag shooter were presented with an armed suspect whose gun arm moved in a manner that met the “imminent threat” defined by case law, leading to the incident’s tragic conclusion.

2. Sgt. Negrete’s Plan Was Missing Critical Contingencies and Steps

Moment by moment decisions without an overarching strategy– as described above –caused critical contingencies to be overlooked. Other than a complete surrender, full compliance, or continued unconsciousness, no plans for any other contingency were in place. Sgt. Negrete did appropriately set up an outer and inner perimeter. However, he failed to lay out the contingencies and plans for those assigned to those perimeters. There was, for example, no plan for what to do if Pawlik woke up, stood up, and ran away with the firearm in hand, or if he dropped the firearm and ran away, or if he dropped the firearm but remained in his position next to it, or passed out, or could not stand up. These are many “what ifs” to consider, but they are all plausible contingencies for this incident that should have been addressed.

Sgt. Negrete is heard saying if the subject was not compliant, he is going to “get thumped right away.” He also discussed with Officer Phillips where to shoot the beanbag rounds, but not what to do if Pawlik had any reaction to “getting thumped” other than giving up and surrendering. The type of bean bag used, a 12 gauge less than lethal bean bag round, is nothing more than a pain compliance device. It relies on a suspect being deterred or surrendering rather than continue to be struck with additional rounds. However, it is a known possibility that a suspect who is intoxicated on alcohol or drugs may be impervious to such pain. What was the contingency if it failed? Perhaps more importantly, other known reactions to bean bag rounds are anger, fight, or flight. What was the contingency if the suspect was suddenly awakened by the strike of a bean

bag and thought perhaps he had been shot? It was obviously conceivable that getting struck with a 12 gauge bean bag round might cause some other reaction other than complete surrender or compliance, but those possibilities were not addressed.

Sgt. Negrete also did not make any clear plans if Pawlik woke up on his own, other than to say, “we’ll deal with him.” As noted by the CPRA and EFRB, the lack of planning included a failure to connect the dots between how Pawlik looked and where he was. Pawlik looked disheveled, unkempt, and potentially intoxicated. His being passed out between houses on a residential street under those conditions gives rise to a ready inference of potential homelessness, with the mental illness that typically accompanies homeless people. Sgt. Negrete stated in his Internal Affairs interview that Officer Hawkins (on scene as a utility officer) was a CIT (Crisis Intervention Training) officer. CIT officers understand the dynamics that accompany mental illness and are trained in de-escalation techniques. This tool was available to Sgt. Negrete, but the course he pursued was to wait for Pawlik to wake up. A consultation with Officer Hawkins, e.g., about the wisdom of using a beanbag round under these circumstances, may have made a difference. As pointed out in department reports, in serious situations such as this where mental health seems a possibility and a life is at stake, Departmental General Order (DGO) K-3 (Use of Force) requires at least consideration of such possibilities.

Sgt. Negrete’s most critical mistake was that he did not consider or discuss any contingency to avoid lethal force if Pawlik raised the gun in a seemingly accidental manner, or in response to being startled and awakened. For example, given the circumstances, it would have been appropriate for Sgt. Negrete to consider options such as better use of the BearCat as full cover, for example, rather than just concealment, especially given its known gunfire stopping capabilities.

3. Sgt. Negrete’s Plan Did Not Take Into Account the Actual Facts of the Situation Before Him

The CPRA stated that Sgt. Negrete’s plan did not take the factual situation before him properly into account. That is, Sgt. Negrete stated in his interview following the incident that in his opinion there was no need to rush. However, Sgt. Negrete stated his initial plan was to wake and confront Pawlik in order to “challenge” him. This plan was potentially problematic because it increased the risk of startling Pawlik, or awakening him when he was still disoriented, under the influence, mentally incapacitated, or confused.

The facts confronting Sgt. Negrete were that Pawlik had been passed out between two houses for what officers knew was at least an hour, during the daytime, which in and of itself is unusual. Sgt. Negrete knew Pawlik was alive because he could be seen breathing and swallowing through binoculars and no blood was seen. Instead, Pawlik appeared to be asleep, drunk, or drugged, and

he was armed but slumped against a wall. Sgt. Negrete should have considered the possibility that Pawlik might have been involved in a shooting or possibly assaulted and injured. This is particularly true given that Pawlik had not awakened from the noise of the original sirens of the first officers arriving on scene, looked “homeless,” and had multiple assorted bags around him. There were many indicators that should have identified Pawlik as someone likely under the influence of something and possibly suffering from mental illness.

Sgt. Negrete’s plan was to wake Pawlik, rather than let him continue to sleep. This is reasonable given the fact that he was holding onto a firearm and it would be unreasonable for officers to tie up resources and wait for an extended period for someone to wake up, especially if he were in fact passed out due to intoxication.

However, Sgt. Negrete’s plans did not seem to address the fact that Pawlik was in a precarious situation or even consider that given his evident condition, he could easily be startled, confused, or disoriented. As such, Pawlik had the increased potential to raise the gun off the ground, which would then likely be considered an immediate threat by the officers acting as lethal cover. As we have seen, Sgt. Negrete’s plan without such a contingency had more than a *potential* to be deadly.

I concur with the CPRA that there was no reason for Sgt. Negrete to formulate a plan that would rush this situation. As stated earlier, the outcome may have been the same in this case even if Sgt. Negrete had not chosen to try and wake Pawlik. Nonetheless, once a plan was formulated to attempt to wake him, that plan should have also considered Pawlik’s likely condition first and contingencies should have been planned for and discussed prior to the attempt.

During his interviews, Sgt. Negrete stated that he considered the use of a K-9, but thought the use of a police dog might startle the suspect and cause a fight or flight situation, possibly injuring the K-9 or handler. This is a reasonable consideration. On the other hand, however, the protection of human life is the number one priority; police K-9s exist to protect officers from dangerous situations and unfortunately, they must put their K-9 partner’s life in harm’s way in certain situations.

Even Sergeant Negrete’s proximity and set up relative to Pawlik’s location (approximately 7-10 yards) is a concern, given the known capabilities of the suspect’s handgun versus the long range capabilities (50 yards) of the officers’ rifles. Using time and distance to enhance officer safety and secure an advantage that could lead to a peaceful surrender is a highly relevant issue on which officers are trained. According to expert witness Sergeant Anwan Jones (Sgt. Jones), who testified to the EFRB (see EFRB Report, pp. 7-12), officers are trained that distance between a threat and the officer is beneficial because officers have training on shooting at greater distances. Distance typically lends itself to increased time to make decisions and react to changing

circumstances. Further, Sgt. Jones explained that with a subject who is unconscious or otherwise compliant, there is no exigency requiring officers to approach that person to affect an arrest, and officers can instead call the person back to them. These concerns were not reflected in Sgt. Negrete's DAT plan.

Additional distance would not only have provided more safety for officers, but perhaps also more opportunity for Pawlik's surrender. It does not appear that using the Bearcat as full cover, while having a React/Arrest team standing nearby, was considered or discussed. With this technique, officers could have safely given commands from inside the full protection of the Bearcat, giving Pawlik ample opportunity to right himself and surrender. Failure to do so or presentation of a firearm could have been dealt with by the arrest team or lethal cover officers, including the officer positioned inside the turret of the Bearcat. While there is no certainty in any of these plans, if the primary goal was to safely take Pawlik into custody with the least amount of force possible plans of similar nature should have been considered and discussed.

Sgt. Negrete's plan basically gave Pawlik only one option if he woke on his own, which is problematic. Sgt. Negrete expected Pawlik to comprehend orders, drop the gun, and surrender, all while not moving the gun in the slightest degree or in any manner which could be perceived as a threat. As was later proven by the tragic ending of the confrontation, if Pawlik moved the gun upwards even by accident, or even while trying to comply, it could have been considered a threat and although lethal force might be *justified* in such a case it may not have been *necessary*. DGO K-3 states that the OPD values the protection and sanctity of human life and that the Department is committed to accomplishing the police's mission with respect and minimal reliance on the use of physical force. Sgt. Negrete's failure to plan for other contingencies was inconsistent with that commitment.

In my opinion, Sgt. Negrete should have considered and discussed with the officers whether any level of raising or moving the gun in advance would be acceptable. Perhaps it was not, but if he was truly seeking a "peaceful resolution" it should have been at least considered.

4. Sgt. Negrete Failed to Remain in a Supervisor Role and Properly Supervise Those Under His Command

During the incident Sgt. Negrete chose to personally handle tasks that he had already assigned to others. Per subject matter expert's testimony, it is best for the team leader to step back and remove themselves from other roles, and instead coordinate those other roles with the DAT. This is necessary so they can react to contingencies and exigent circumstances, give commands to teammates, assign different roles, and most importantly, slow things down and assess the situation in totality. Sgt. Negrete assigned himself the role of "talker," as discussed earlier, even though he had assigned the role of "announcer" to Sgt. Webber. Sgt. Negrete also assigned two

officers as lethal cover (Officers Hraiz and Berger), but can be seen holding his rifle and pointing it at Pawlik for the majority of the incident. There was no reason Sgt. Negrete needed to be “talker” or to himself act as lethal cover. There were sufficient officers available to fill these needed roles. Sgt. Negrete’s taking on of multiple roles diverted his attention away from the officers he was supervising. Given the potentially lethal nature of the situation, he should have known based on his level of training and experience that keeping his attention on what was happening was critically important.

Sgt. Negrete’s failure to supervise his DAT team and control the scene is further evident in his failure to notice that after he arrived on scene, Officer Tanaka had his rifle pointed at Pawlik as lethal cover standing right next to him, bringing the number of lethal cover officers to four on a man they wanted to surrender peacefully. Although there is no prescribed number of officers who should be assigned as lethal cover in situations like this the facts illustrate that Sgt. Negrete’s own role as lethal cover was not necessary, but his role as a team leader and controlling the scene was. As a team leader who was not engaged as lethal cover and “talker,” he might have noticed that Tanaka arrived with additional lethal cover and that no one had been assigned as a designated Taser Officer. Sgt. Negrete could have also taken the time to brief Tanaka, or at least give him verbal commands as to his role, something that was very difficult if not impossible to do when he was so closely engaged with the suspect.

Because Sgt. Negrete failed to remain a team leader, he also failed to control the instructions being given to Pawlik when he woke up. Sgt. Negrete immediately gave commands, but so did various other officers, a situation which is consistently advised against in training. Conflicting commands can result in deadly consequences, especially since in this case Pawlik already appeared dazed and confused and was by all accounts previously unconscious. The multiple commands that were shouted out demonstrate multiple failures on Sgt. Negrete’s part: failure to maintain control of all the officers giving commands; prior failure to designate either himself or Sgt. Webber as the sole speaker; failure to address whether a command would be given in Spanish; and failure to ensure commands were not conflicting, as evidenced on the PDRD.

5. Sgt. Negrete Failed to Assist in the Sequestration of Officers Post-Shooting or in Not Discussing the Incident Following an Officer Involved Shooting

The CPRA also found that Sgt. Negrete failed in his duties to assist in the sequestering of officers and in not discussing the incident following an OIS. Rather than assisting in the sequestering of Officer Tanaka, Sgt. Negrete improperly stated to him after the shooting, “Dude, you had to. He pointed a gun right at us man.” He is also heard on his PDRD at 42:17 saying to Officer Tanaka, “Hey, we had no other option.”

All officers are trained to not discuss an incident following an OIS. This is a very serious and troubling breach of protocol. Per Departmental General Order K-4-Reporting and Investigating the Use of Force (16 Oct 14), “Every member or employee who uses or is a witness to a Level 1 use of force shall not discuss the incident with others and limit any discussion of the incident to information required...” Further, per Informational Bulletin “Force Review Boards” (04 May 16), which was in effect at the time of the shooting, “Supervisors are reminded they should make every attempt to keep all involved parties separated.”

It is my belief that the fact Sgt. Negrete was not just a supervisor on scene but also a shooter should be taken into account as a mitigating circumstance. I find it very plausible and consistent with incidents of this nature that Sgt. Negrete, having just deployed lethal force and killed a suspect, would make involuntary statements such as he did. It is highly likely that he himself was in shock, disheartened, and somewhat panicked, all of which are natural human reactions to such an intense situation. While I believe this to be the case, however, it also further illustrates precisely why the team leader, a supervisor, should have remained a team leader and a supervisor.

E. Lt. Yu’s Review of Sgt. Negrete’s Plan

Although Sgt. Negrete’s DAT plan was clearly flawed for all the reasons already discussed, his responsibility is partially mitigated by the fact that his Incident Commander Lt. Yu was briefed on the flawed plan and did not raise any objections. As Chief Kirkpatrick observed in her Addendum to the EFRB Report (p.4, emphasis added):

In my review, I found Lieutenant Yu took many appropriate actions that I expect of a commander over a critical incident. His statement revealed his critical thinking skills. For example, he took command action when he overruled Sergeant Negrete’s assignment of less lethal from Sergeant Webber to Officer Phillips. He also made sure that his sergeants were dispersed properly around the perimeter and ensured medical was staged. However, I agree that Lieutenant Yu deferred to Sergeant Negrete too much and he should have had more firm control of the management of the scene as articulated by the Board. I also agree that after he was briefed by Sgt. Negrete, Lt. Yu should have recognized that Sgt. Negrete failed to plan for one of the three basic contingencies all DAT leaders must consider—i.e., how to react to foreseeable exigencies created by the suspect.

F. Sgt. Negrete’s Training

As was discussed at length during his interviews and the subsequent IAD and EFRB investigations, Sgt. Negrete received more than adequate training and had more than adequate

experience in setting up a DAT. He was trained in the basic components of a DAT, which at minimum included a team leader, a talker/cuffer, a primary lethal cover, and a less-lethal officer. In a scenario with an armed and unconscious or unresponsive subject, ideally there would be at least one additional officer as a utility to fill in if necessary or if an unexpected job arises. In previous training, “Handling Critical Incidents for Supervisors & Commanders” (Lt. Shannon/10 Apr 16), contingency planning for the DAT was also expressly described as looking at “what if” the suspect surrenders; the suspect attempts to flee; the suspect attempts to drive away; or there is an active shooter (diversions/breach).³

Without repeating what has already been written in the many reports and investigations in this case, it is clear that Sgt. Negrete had adequate, if not above average, training in how to respond to critical incidents and setup a DAT, particularly given his current assignment and experience as a member of SWAT. (See EFRB Report, pp. 7-12.)

Some of Sgt. Negrete’s supervisory deficiencies in this incident may be attributable to inadequacies in the departments training. As noted by IAD and EFRB, there were serious concerns about Sergeant Negrete deploying his own rifle as part of the DAT, even though he had two officers already with rifles as primary cover officers and taking the role of both team leader and talker/cuffer, which split his attention and did not allow him to effectively supervise the team or recognize and brief other officers arriving or correct potential conflicting orders; as well as concerns about how the Bearcat was used or specifically not used to its full capabilities.

However, as pointed out by (Subject Matter Experts (SME’s), the training Negrete and other supervisors received allowed for flexibility in the areas of concern. The SME said that ideally the Supervisor would remain in a position to supervise during an incident and not become directly involved, particularly as a lethal force option, but that there was nothing in the current training that prohibited this from occurring or stressed that it should occur only as a last resort/if there was critical need to do so. In fact, one SME suggested that under current training guidelines, it was common or highly likely that members of DAT including the supervisor could take on multiple assignments. It was also identified that current training did not recommend self-deployment of lethal force or other identified rolls but also did not specifically prevent or discourage officers from doing so. This suggests that there was a strong need for communication and supervision to ensure everyone’s role was properly identified and supervised by the commanding officer.

As a result, IAD correctly identified multiple areas of improvement to the training related to DAT, including specifically the roll of a supervisor (EFRB Report, section D, p. 38). IAD also

³ A complete list of the training Sgt. Negrete received appears in the CID supplemental report at PDF pages 16 and 17.

recommended that more training should be developed for sworn members on the use and deployment of the Bearcat, and further recommended that the Department develop and implement additional training on encounters with unresponsive armed persons as well as on reasonable contingencies to expect during critical incidents involving a DAT. The EFRB noted and agreed with these recommendations as noted here:

The Board also felt that additional training was needed for supervisors and commanders on the supervisory and leadership aspects of leading a DAT. The Board recommended that all members, regardless of rank, receive additional training on the roles and responsibilities of a DAT, and that supervisory and command staff receive additional training on top of that on the supervision and leadership of a DAT.

The Training Division will create additional training on DATs for all sworn FRB members, to include roles, responsibilities, contingencies, plain-English commands and communication, and supervisory responsibilities. This training will include information and considerations regarding self-deploying into an established DAT or critical incident scene.

The Training Division will formulate additional training for all sworn personnel on use of the Bearcat, which will include supervisory and command considerations.

The Special Operations Division will create procedures on the use of the Bearcat in the field and will maintain a list of all officers trained in operating the Bearcat.

These recommendations are relevant and mitigating factors in determining the culpability of Sgt. Negrete as it relates to the charge of failing to supervise. As noted throughout the various reports the actions of Sgt. Negrete must be judged from the “reasonableness standard,” e.g., the perspective of a reasonable officer on scene with the same level of experience and training, rather than with 20/20 vision of hindsight. The fact that IAD and the EFRB astutely identified multiple areas of training concern and/or failure is a relevant, mitigating circumstance.

As was discussed in the companion Report, at the time of this incident OPD did not have any policy or training bulletin on how to deal with unconscious, armed persons. In 2015, there had been a fatal shooting of an unconscious armed person by OPD officers, and the need for a specific policy and training bulletin was known.⁴ One of these recommendations was that a

⁴ See IAD Case #15-0436; EFRB 15F-0230; RO#15-029-134. In this incident, a male was reported to be stopped in the roadway, sleeping / unresponsive in a vehicle, with a gun at his

training group be organized for specific tactical and scene management training for barricaded subjects inside of a vehicle. The issue was not actually addressed until after the Pawlik incident, when a citizen's subcommittee was formed at the direction of the Compliance Director and District Court Judge William Orrick; that subcommittee ultimately resulted in adoption of a new policy focused on preservation of human life and safety; de-escalation through "communication, time, distance, and cover;" "strategically responding to complex interactions instead of merely reacting to them;" and differentiation between physical cover and armed cover provided by officers deploying lethal or less lethal weapons. The policy also requires officers to bring in specialized resources "to assist in the peaceful resolution of difficult incidents when necessary and feasible."

One can only guess what would have become of Pawlik had this policy been put in place before the incident. It is certain, however, that if Sgt. Negrete and Lt. Yu had implemented the plan in the face of the new policy, without protest from the officers and sergeants who were present, this case would have taken an entirely different course – and in my view, the disciplinary outcomes for all six personnel would have been entirely different.

G. Sgt. Negrete's Job History

Sgt. Negrete was elevated and became collaterally responsible as supervisor of the Crime Reduction Team in July 2017. He was also on the Entry Team (SWAT), where he received "exceeds expectations" reviews from his supervisors, in particular for handling of high profile, in-progress felony situations; overall work ethic; and supervision of subordinates. Prior to his promotion, Sgt. Negrete was assigned as the Port Security Officer. In that role he was praised for exceptional performance in many areas and had previously handled high profile situations. He also had heavy community involvement with many groups, including the business members of Jack London Square, and was praised for that involvement and for his work with Oakland residents including with the APOA, LPOA, and Oakland Gay, Lesbian and Transgender groups. He was awarded a Good Conduct Bar twice, as well as the Tactical Operations Team Bar. Before joining OPD, Negrete was in the US Coast Guard, serving 15 years on active duty.

Regarded as a team player, prior to the present incident Sgt. Negrete had no complaints of any kind (sustained or not sustained) for several prior years, and no sustained complaints before that. Overall, given his level of pro-activity and involvement in high risk operations, his use of force

side. Officers approached the unresponsive male and ended up shooting him, resulting in his death. Several recommendations were made in the subsequent Internal Affairs Investigation in which the EFRB concurred.

incidents were relatively infrequent and of low seriousness, and none was found to be outside of policy.

V. “JUST CAUSE” REVIEW

“Just cause” is the disciplinary cornerstone embedded in the MOU between the City and OPOA. The companion Report explained and applied that principle. The parameters of just cause are repeated here for ease of reference, and are applied below.

“Just cause” exists where substantial evidence of culpability for rule violation(s) has been established through a full and fair investigation, consistent with fundamental principles of due process. (See *Tucson Unified School Dist.*, 89-1 ARB § 8236 (White, 1989); *United Tel. Co. of Fla.*, 61 LA 443 (Murphy, 1973); see also *Grace Indus., Inc.*, 102 LA 119, 123 (Knott, 1993) [due process requires that employer conclude that sufficiently sound reasons exist for discipline based on a “careful and unbiased investigation of the charge”]). The most famous attempt to formalize the requirements of “just cause” was made by Arbitrator Carroll Daugherty in 1964, in the form of seven questions that must be answered in the affirmative for just cause to exist:

- (1) Was the employee on notice of the possible or probable disciplinary consequences of their conduct?
- (2) Is the rule at issue reasonably related to the orderly, efficient, and safe operation of the employer’s business?
- (3) Did the employer conduct a satisfactory investigation before imposing discipline?
- (4) Was the investigation conducted fairly and objectively?
- (5) Did the investigation establish substantial evidence or proof of guilt?
- (6) Has the employer applied its rules, orders, and penalties evenhandedly and without discrimination?
- (7) Was the degree of discipline imposed reasonably related to both the seriousness of the offense and the record of the employee’s service?

(*Grief Bros. Cooperage Corp.*, 42 LA 555, 557-59 (Daugherty, 1964.)) Even Daugherty himself acknowledged, however, that the facts of every case are unique and often these specific questions “cannot be applied with slide-rule precision.” (*Id.* at 557.) At minimum, however, it is universally acknowledged that just cause requires a fair investigation, substantial evidence, and that any disciplinary action must be:

- (a) Even-handed (i.e., without disparate treatment);
- (b) Consistent with existing standards and practices; and

- (c) Take into account the employee's job record, training, and all other mitigating and aggravating factors reflected in the record.⁵

VI. DISCUSSION

A. Alleged Excessive Use of Force (Violation of MOR 370.27)

The companion Report recommended that the four officers be exonerated for alleged excess use of force, because the preponderance of the evidence supported concluding they reasonably believed Pawlik posed an imminent threat when his arm and gun moved in their direction. Sgt. Negrete had the same objectively reasonable belief, and his response with lethal force therefore also did not violate case law or Department policy. Accordingly, it is recommended that the disposition on excess use of force be designated as "exonerated."

The difference between the situations of the officers and Sgt. Negrete, however, is notable. As indicated in the companion Report, Sgt. Negrete and Lt. Yu – not the officers – set the stage for the death of Pawlik by inadequately planning for contingencies. While this does not mean Negrete's ultimate use of force was unjustified, it is nonetheless relevant to the supervision issues discussed below.

B. Alleged Failure to Supervise (Violation of MOR 285.00)

All reviewers have agreed that Sgt. Negrete violated MOR 285.00 because of the inadequacies of his supervision of the scene. Based on the facts, this was an ineluctable conclusion. The key questions lie elsewhere: (1) did Sgt. Negrete's misconduct constitute a "Class 1" violation that amounted to "gross dereliction of duty" as defined by MOR 175.99, or instead a more minor "Class 2" violation, and (2) what specific level of discipline should apply in this instance?

⁵ Progressive discipline is sometimes considered a separate component of just cause in connection with performance deficiencies and minor misconduct, and sometimes considered under the rubric of mitigating and aggravating factors. In any event, it applies less - or not at all - to more serious types of misconduct. (*Municipality of Anchorage*, 128 LA 1153; see generally *International Harvester Co.*, 12 LA 1190 (McCoy, 1949); compare *City of Cuyahoga Falls*, 138 LA 1206 (Belkin, 2018) [discharge without progressive discipline upheld for police officer who placed co-worker in chokehold]; *City of Stayton*, 138 LA 1917 (Latsch, 2018) [City found to have just cause to discharge police officer for using excessive force in traffic stop with paraplegic driver]; *PPG Industries*, 122 LA 1250 (Suntrup, 2006) [discharge upheld for violation of important safety rule, despite being first offense].)

1. The Crucial Distinction: “Class 1” vs “Class 2” Violations of MOR 285.00

MOR 285.00 establishes the specific authority and responsibilities of supervisors, over and above the general and individual responsibilities of all members and employees. Among other items, that authority and responsibilities includes closely supervising the activities of subordinates; making corrections where necessary; providing leadership including coordination of effort when more than one member or employee is involved; exercising direct oversight in a manner that ensures the good order, conduct, discipline, and efficiency of subordinates; and enforcing and ensuring compliance with Departmental policies and procedures. (See MOR 285.14, 285.28, 285.42, 285.56.)

Pursuant to DGO M-3, MOR violations are categorized as either “Class 1” or “Class 2” offenses. As explained in the CPRA Report of Investigation (p. 38) :

Class I violations against Departmental Personnel or Procedures, are the most serious allegations of misconduct and, if sustained, shall result in disciplinary action up to and including dismissal and may serve as the basis for criminal prosecution. Class II offenses shall include all minor misconduct offenses.

DGO M-3 specifically states that Class 1 violations include “failure of a supervisor to /manager to properly supervise, and/or take corrective action for misconduct that he/she knew about or reasonably should have known about.” The Discipline Matrix established in Training Bulletin V-T “Discipline Policy Appendix” (14 Mar 14), however, distinguishes between Class 1 and Class 2 violations of MOR 285.00 by limiting Class 1 only to violations that meet the high standard of “gross dereliction of duty.” “Gross Dereliction of Duty,” in turn, is defined by MOR 175.99 as:

GROSS DERELECTION OF DUTY - Failure to use reasonable care to protect life and/or property and to safeguard the legal rights of individuals. Gross dereliction of duty is characterized by carelessness and a reckless disregard for the consequences of the member or employee’s conduct.” (Emphasis added.)

Class 1 violations carry heavy potential penalties, including the prospect of termination even for a first offense. Penalties for Class 2 violations are commensurately less, as expected given that Class 2 violations are referenced as “minor” offenses.

2. Interpretations and Application of the Key Terms and Standards

a. Chief Kirkpatrick's Analysis of the Issue

At page 5 of her Addendum to the EFRB Report, Chief Kirkpatrick explains:

In my analysis, I reviewed our MOR on gross dereliction of duty, the standard required for this violation to be a class 1 instead of a class 2. Gross dereliction of duty is a high standard. It requires both carelessness and a reckless disregard for the consequences of the member's conduct. I took guidance from case law addressing the standard of recklessness, including the following. In *Delaney v. Baker*, the California Supreme Court stated: "'Recklessness' refers to a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur. [Citations omitted.] Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions,' but rather rises to the level of a 'conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it.' [Citations omitted.] *Id.*, (1999) 20 Cal. 4th 23, 31-32.

Similarly, in *Conservatorship of Gregory v. Beverly Enterprises, Inc.*, the court found that the following instruction adequately defined "recklessness": "[T]he term 'recklessness' requires that the defendant have knowledge of a high degree of probability that dangerous consequences will result from his or her conduct and acts with deliberate disregard of that probability or with a conscious disregard of the probable consequences." *Id.*, (2000) 80 Cal. App. 4th 514, 521.

Reckless disregard is a degree of culpability greater than both ordinary negligence and "gross negligence." "'Ordinary negligence'"—an unintentional tort—consists of a failure to exercise the degree of care in a given situation that a reasonable person under similar circumstances would employ to protect others from harm. [Citation.] 'Gross negligence' long has been defined in California and other jurisdictions as either a 'want of even scant care' or 'an extreme departure from the ordinary standard of conduct. [Citation.]" *City of Santa Barbara v. Superior Court* (2007) 41 Cal. 4th 747, 753–54; *see also, e.g., Hass v. RhodyCo Prods.* (2018) 26 Cal. App. 5th 11, 32, review denied (Nov. 28, 2018). "'[G]ross negligence' falls short of a reckless disregard of consequences." *E.g., Hass* at 32.

b. Arbitral Analysis

In labor law and labor relations, arbitration decisions typically serve as “the law of the shop.” While technically not “precedential” in the legal sense, they are (to the extent they are deemed reasonable) persuasive authority in subsequent cases. In December 2015, Arbitrator Gaba (an arbitrator mutually selected between the City and OPOA) issued a decision squarely addressing the difference between Class 1 and Class 2 violations of MOR 285.00, noting three important and relatively unique facets that differentiate the two classes of offense: (a) the reference to *gross* dereliction of duties, (b) the reference to *recklessness*, and (c) the conjunctive (not disjunctive) “and” that linked the terms “carelessness *and* a reckless disregard for the consequences.” (See generally, Gaba Award at pp. 28-31.)

First, the Arbitrator looked to *Black’s Law Dictionary* for the dictionary definition of “gross:”

gross *adj.* **1.** Conspicuous by reason of size or other attention-getting qualities; esp., obvious by reason of magnitude <a gross Corinthian column>. **2.** Undiminished by deduction; entire <gross profits>. **3.** Not specific or detailed; general <a gross estimate>. **4.** Coarse in meaning or sense <gross slang>. **5.** Repulsive in behavior or appearance; sickening <a gross fellow with gross habits>. **6.** Beyond all reasonable measure; flagrant.

In assessing whether an officer’s misconduct was “gross,” the Arbitrator relied in part on whether that employee’s supervisor was aware of their conduct. The fact that the officer’s Lieutenant “was aware of where he was and what his activities were” was deemed to be a critical determinant in the case. Crucially, the Arbitrator found:

It was [the Lieutenant’s] job to supervise [the Officer] and one would expect that, with his narrow span of control, he would not [sic]⁶ know where [the officer] was. Rank and file employees often have to make decisions; however, when supervisors such as [the Lieutenant] know of the decisions, it is difficult to second guess a lower-level police officer whose lieutenant is witnessing his activities.

The Arbitrator reasoned that although the Lieutenant’s knowledge of the Officer’s conduct did not excuse the Office’s actions, it was “powerful evidence that [the Officer’s] actions were not ‘conspicuous by reason of size or other attention-getting qualities,’ and hence his infraction was not ‘gross.’”

⁶ Viewing the context, it is like that the inclusion of the term “not” was likely a scrivener’s error.

Second, the Arbitrator noted that under the Rule, officer's behavior "must be much more than just 'gross' to justify a Class 1 designation; the activity for which he is disciplined must also be 'reckless.'" Again citing to *Black's Law Dictionary*, the Arbitrator noted that "reckless" means:

reckless *adj.* (bef. 12c) Characterized by the creation of a substantial and unjustifiable risk of harm to others and by a conscious (and sometimes deliberate) disregard for or indifference to that risk; heedless; rash. • Reckless conduct is much more than mere negligence: it is a gross deviation from what a reasonable person would do. See RECKLESSNESS; RECKLESSLY. Cf. CARELESS.⁹

Elaborating on the principle, the Arbitrator referenced California law:

In California, "Recklessness" refers to a subjective state of culpability greater than simple negligence, which has been described as a "deliberate disregard" of the "high degree of probability" that an injury will occur. Recklessness, unlike negligence, involves more than "inadvertence, incompetence, unskillfulness, or a failure to take precautions," but rather rises to the level of a "conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it." [*Black's Law Dictionary* (10th ed. 2014), reckless.]

The Arbitrator also consulted the Restatement Second of Torts, the most often-used treatise on the law of torts. He noted:

Restatement Second of Torts, section 500, provides: "The actor's conduct is in reckless disregard of the safety of another if he does an act or intentionally fails to do an act which it is his duty to the other to do, knowing or having reason to know of facts which would lead a reasonable man to realize, not only that his conduct creates an unreasonable risk of physical harm to another, but also that such risk is substantially greater than that which is necessary to make his conduct negligent."

Overall, Arbitrator Gaba concluded that to constitute a Class 1 violation a supervisor's failure to adequately supervise must be both "gross" and "reckless," and that "recklessness" in this context requires the defendant to have knowledge to a high degree of probability that dangerous consequences will result from his or her conduct."

c. Departmental Past Practice

A review of other conduct that departmental practice has previously determined to qualify as "Class 1" violations shows that terminations has been imposed for:

- Harassment and discrimination

- Workplace violence
- Failing to assist a fellow officer
- Failure to provide notice of criminal arrest, citation, or investigation
- Insubordination (failure or refusal to obey a lawful order)
- Obstructing the internal affairs process
- Intentional illegal search, seizure, or arrest
- Planting evidence
- Violating Miranda rights
- Commission of felony or serious misdemeanor
- Driving under the influence
- Failure to report misconduct when required
- Soliciting or accepting gratuities or rewards
- Use of privileged information to gain financial or other benefit
- Using authority or position to improperly obtain property
- Sexual activity on duty
- Falsely reporting an illness or injury
- Consumption of intoxicants while on duty or carrying a firearm
- Collision with gross negligence
- Accessing inappropriate websites
- Improperly disseminating information from Departmental/City computers
- Unauthorized use of electronic systems
- Revealing the identity of an undercover officer
- Illegal use of force
- Unreasonable restraint of prisoners
- False report or booking
- Conduct compromising criminal cases
- Assisting criminals
- Providing an endorsement or referral for fees
- Belonging to subversive organizations
- Seeking personal preferments

- Refusing to testify
- Interfering with investigations
- Retaliation
- Failure to hold subordinates accountable for retaliation
- Refusal to accept or refer a complaint.
- Dishonesty

All of the above referenced allegations relate to conduct that causes harm to the public service; shows lack of integrity; impairs the integrity of the department; is antithetical to effective law enforcement; has broken or diminished public trust and confidence; violates constitutional rights; violates criminal law; involves violence and gross indifference to duty; is willful and deliberate; and shows a reckless disregard for consequences.

3. Determinations Made by Review Entities

As noted *supra*, the IAD and Chief Kirkpatrick found that Sgt. Negrete's Failure to Supervise was a Class 2 violation of MOR 285.00. In contrast, the EFRB, Compliance Director, Police Commission Discipline Committee and Skelly Officer sustained a Class 1 violation. The stated reasons for each decision are quoted at length below.

a. IAD Reports

IAD found significant fault with Sgt. Negrete's work at the scene. (See IAD Report, at p. 126.) It did not, however, initially consider the prospect that Sgt. Negrete's conduct could be considered a "Class 1" offense. Upon return of the issue to IAD for assessment of Class 1 vs, Class 2, IAD determined the violation to be a "Class 2" offense: (See supplemental IAD Report, pp. 18-19):

Did Sergeant F. Negrete's performance during the incident under investigation amount to gross dereliction of duty?

No, this investigation determined that this was not the case.

Sergeant Negrete's supervisory deficiencies were already detailed on pages 125-126 of IAD's original report. These deficiencies were assessed as a violation of MOR section 285.00-2, Supervisor Responsibilities.

After conducting additional SME interviews, these originally identified deficiencies are still assessed as problematic. Additionally, a more pronounced shortcoming in Negrete's planning came to light. The SME's provided consistent

information to indicate that OPD personnel (especially members of the Tactical team) should have at least three elementary contingencies in place when preparing a DAT. These contingencies are:

- Accept surrender
- Prevent Escape
- React to Exigent Circumstances

Negrete adequately covered two of these contingencies. He had detailed a plan to his team regarding how they would awaken Pawlik and take him into custody. Negrete also had a perimeter in place, effectively surrounding Pawlik. This measure effectively prevented Pawlik's escape.

Negrete did not have a plan in place, be it sophisticated or rudimentary, as to how the team would react to an exigent circumstance created by Pawlik. The potential for Pawlik to awaken and not respond to the officers' commands was a realistic possibility that should have been planned for. Negrete seems to acknowledge this shortfall by telling a DAT team member there is going to be a problem if Pawlik wakes up; and then offering no solutions to such a problem.

SME's stated that this training has been put out to OPD personnel and surmised that an experienced member of the OPD Tactical Team would surely be aware of the requirement for these three basic contingencies. OPD Training Records indicates that Negrete has attended and received relevant training.

OPD's Manual of Rules defines Gross Dereliction of Duty as a "failure to use reasonable care to protect life and/or property and to safeguard the legal rights of individuals. Gross dereliction of duty is characterized by carelessness and a reckless disregard for the consequences of the member or employee's conduct."

Negrete's supervision was lacking, as described previously and above. However, Negrete did design a plan to take Pawlik into custody peacefully. He assembled a DAT and assigned roles to subordinates. He started to implement his plan and appeared to make a good faith effort to preserve life. Although his planning and supervision were lacking; his conduct did not constitute a careless or reckless disregard for the consequences of his actions or the actions of his team.

This investigation has determined that the original finding is the most appropriate for Sgt. Negrete. IAD's recommendation is a **SUSTAINED** finding for MOR section 285.00-2 Supervisor Responsibilities.

b. EFRB determination

At pages 43-45 of its Report, the EFRB explained:

Deliberations as to Sergeant Negrete

The Chair opened the floor for discussion on IAD's recommendation that Sergeant Negrete's failure to properly supervise be found as **Sustained** and classified as **class two**.

Board member Captain Bolton stated that he agreed with IAD's finding. He opined that there was a lack of planning on Sergeant Negrete's part, and that this manifested itself in a variety of ways. One example that Captain Bolton specifically pointed to was the fact that multiple officers were giving Pawlik commands when Pawlik awoke, which Captain Bolton thought would have been curtailed or eliminated if Sergeant Negrete had properly supervised the DAT, as opposed to becoming too involved in the incident. However, Captain Bolton asserted that the lack of planning and supervision on the part of Sergeant Negrete did not create the exigency nor the use of force; instead, Pawlik's failure to follow commands of the officers and his pointing his handgun at the officers created a lethal threat which the officers had to defend themselves against.

The Chair disagreed and contended that Sergeant Negrete's conduct constituted gross dereliction of duty when examining the event in totality, and thus rose to a class one violation. The Chair cited a confluence of multiple failures which, when viewed in totality, were so inappropriate that they constituted gross dereliction. These included:

Sergeant Negrete deploying his own rifle as part of the DAT, even though he had two officers already with rifles as primary cover officers;

Sergeant Negrete taking the role of both team leader and talker/cuff er, which split his attention and did not allow him to effectively supervise the team;

Sergeant Negrete's failure to plan for a foreseeable exigency-Pawlik awakening and refusing commands - did not meet the standard of a reasonable care to protect life;

The outcome of this incident (Pawlik losing his life) was so severe that it had to be taken into consideration when determining whether Sergeant Negrete's conduct rose to the level of gross negligence.

Captain Bolton rejoined by saying that, although the result of the incident was extremely unfortunate, that result came about as a consequence of the actions of the subject, Pawlik. Captain Bolton proposed a thought experiment where all the actions were the same but instead Pawlik dropped the gun and was taken into custody without force. The same failures would have been present, and Sergeant Negrete's failures to plan would have still needed correction. But in that light, they would not have been considered gross dereliction of duty. As such, Captain Bolton opined that the outcome should not be weighted to that degree, and that looking solely at Sergeant Negrete's actions in a vacuum they did not rise to a level of gross negligence.

The Chair respectfully disagreed, and shared his view that the outcome of this case was important, as a person lost his life. The Chair noted that OPD has seen a decrease in lethal force incidents because of a trend of good supervision and a desire to plan, create time and distance, and work towards peaceful resolution. In the estimation of the Chair, Sergeant Negrete's failures of supervision robbed the DAT of their abilities to utilize the superior tactics, equipment, and opportunities which could have changed the outcome of this incident. The Chair asserted that his vote was that Sergeant Negrete should be sustained for class one gross dereliction of duty in his failure to supervise the DAT (MOR 285.00-1).

Captain Bolton responded and respectfully disagreed with the Chair's assessment. Captain Bolton noted that, while the Chair felt that Sergeant Negrete did not make plans that created time or distance, the IAD investigation showed that a plan had been created and that this plan was, in the view of Captain Bolton, adequate for taking Pawlik into custody. The main issue was that plans for other exigencies were not discussed. Secondly, Captain Bolton took issue with the idea that the Bearcat armored vehicle was not used to its full capabilities, saying that, based on his understanding of the training regarding the Bearcat, there was no different way that he saw of using it.

The Chair responded by noting that, while Sergeant Negrete did create a plan and tell it to Lieutenant Yu, Sergeant Negrete did not follow that plan when Pawlik unexpectedly woke up, but instead got sucked into addressing the threat himself, losing supervisory control. Additionally, the Chair's assessment of the way that the officers were using the Bearcat based on the PDRD video was as a platform from which to shoot, and not as a piece of armor to shield themselves behind. These were deficiencies that were directly caused by Sergeant Negrete's failure to supervise, in the estimation of the Chair.

Board member Captain Joshi weighed in, saying that in his estimation there were too many mistakes made by Sergeant Negrete as a supervisor. While each of the issues - here Captain Joshi referenced Sergeant Negrete taking a primary cover role with his rifle, assigning himself the talker/cuffer role, and not adequately planning for contingencies - in and of themselves were not overly serious, put together they constituted a gross dereliction of duty. Captain Joshi also noted that, after the use of force incident, Sergeant Negrete was captured on PDRD reassuring other involved officers that they had no choice and “had to” use lethal force. Captain Joshi felt that this was also a factor which should be included in a decision as to whether Sergeant Negrete’s actions were gross dereliction of duty.

Captain Bolton responded, again referencing that, while there is a subjective line between ordinary and gross dereliction of duty, his assessment of the incident was that Sergeant Negrete was making a good faith effort, and that his failure to properly supervise did not constitute gross dereliction. Additionally, he shared his belief that the conduct of Sergeant Negrete should be examined untethered from the outcome of the incident. Captain Bolton also referenced an example given by IAD of gross dereliction, which would have been if the supervisor had not even shown up to the scene but just monitored the incident via the radio, as an example of clear gross dereliction of duty. The Chair and Captain Joshi disagreed, saying that this example was outside the bounds of reality and that the outcome of an incident must be factored in when making decisions about the conduct of the officers on scene.

The Chair called for a vote. The Chair and Captain Joshi voted to reject IAD’s recommendation and instead sustain Sergeant Negrete for class one gross dereliction of duty for failure to supervise. Captain Bolton dissented, voting to uphold IAD’s original recommendation to sustain Sergeant Negrete for a class two violation for failure to supervise. By a two-to-one vote, the Board recommended the following finding for Sergeant Negrete in regards to the allegation of gross dereliction of duty by failing to supervise:

**Gross Dereliction of Duty- Supervisors -Responsibilities MOR 285.00-1
SUSTAINED**

As I discuss further below, it is plain that the majority decision of the EFRB, concluding this to be a Class 1 offense, relied on the outcome of the case and did not grapple with the criteria that establishes a high bar for Class 1 designation. This interpretation is effectively a re-write of the Class 1 criteria.

c. Chief Kirkpatrick's Addendum

In the paragraphs quoted *supra* in subsection 2(a) explain, Chief Kirkpatrick's analysis properly centered on whether or not Sgt. Negrete's actions qualified as "gross dereliction of duty." Based on that analysis, she further stated (pp. 4-6):

In assessing Sergeant Negrete's conduct under these standards, I find that his decisions, though very negligent, did not rise to the level (degree) of conscious and deliberate disregard for the safety of others, including Mr. Pawlik. Although his failures may stem from inadvertence, including a clear failure to follow his training regarding the three basic contingencies of a DAT and the role of a DAT leader, I do not see his failure to take precautions as evidence of deliberate disregard for Mr. Pawlik's safety. Sergeant Negrete's actions in taking on multiple roles and not planning adequately for foreseeable contingencies were supervisory failures. However, his decisions cannot be characterized as being done with reckless disregard. Instead, the evidence shows that in his planning he sought to resolve the situation with everyone's safety in mind, determining that he was the best person for the talker/cuffer role and believing that he was planning for contingencies with the goal of taking Mr. Pawlik safely into custody. Sgt. Negrete assigned DAT roles and articulated a detailed plan for two different scenarios, which he shared with the incident commander. The subject matter expert testified during the EFRB that the DAT leader takes an overall big picture/strategic view of the incident and sergeants are not taught to take on one of the more specific roles. Nonetheless, it does not appear that sergeants are explicitly trained they are not to take on a specific team-member role. In fact, the subject matter expert said that a team leader may take on an additional role such as talker/cuffer depending on the circumstances.

The Board Chair pointed out that Sergeant Negrete's decision to deploy his own rifle was unnecessary given the fact that he had two lethal cover officers assigned. Although I do not disagree with this assessment, I do not believe it supports a finding of gross dereliction of duty under the circumstances. The subject matter expert told the Board that the DAT team leader's big picture role does not preclude the sergeant from defending him/herself or others from a threat. Sgt. Negrete decided to deploy his rifle in response to what he perceived as a lethal threat to himself and his officers. Moreover, he did not fire his weapon at Mr. Pawlik when Mr. Pawlik gained consciousness, began rocking back and forth to sit up and failed to heed multiple warnings. The evidence does not contradict his statement that he fired at the moment he felt their lives were in danger.

In sum, during the course of the incident, a review of Sgt. Negrete's conduct in its entirety under the totality of the circumstances shows errors in judgment and action. Errors that occurred in a very serious situation with the lives of both Mr. Pawlik and others at stake. However, despite his failures, his conduct viewed as a whole does not demonstrate gross misconduct carried out with carelessness and reckless disregard for the safety of others. Instead, there is evidence of his desire to resolve the situation without harm to anyone, including Mr. Pawlik. Accordingly, I find Sergeant Negrete **Sustained for a class 2 failure to supervise.**

d. Compliance Director's Addendum

In his addendum to the EFRB Report, the Compliance Director stated (pp.3-4):

I agree with the EFRB Chair in his assessment that when examining the circumstances in their totality, Sergeant Negrete's conduct constituted gross dereliction of duty. As part of his reasoning, the EFRB Chair cited multiple failures on the part of Sergeant Negrete. He deployed his own rifle as part of the Designated Arrest Team (DAT), though he had designated two officers with rifles as primary cover officers. He assumed the role of both team leader and talker/cuffer, which divided his attention and did not allow him to effectively supervise the team. He failed to plan for a foreseeable exigency: Mr. Pawlik awakening and not complying with commands. The most important point the EFRB Chair made is that the outcome of this incident was so severe that it needed to be considered when determining whether Sergeant Negrete's conduct rose to the level of gross negligence.

* * *

After reviewing all of the investigations undertaken by the Department and the resultant deliberations of the Executive Force Review Board, I reject the Chief's principal conclusions in this matter.

* * *

My determinations of findings are as follows:

* * *

Sergeant Negrete, Allegation: Violation of MOR 285.00-1, Failure to Supervise – Sustained.

e. CPRA Report of Investigation

The CPRA Report of Investigation instead found that Sgt. Negrete's violation should be deemed Class 2,⁷ stating as follows (pp. 38-40):

***Discussion re Classification of Allegation 6 as a Class II violation as to Sgt. Negrete:**

Per DGO M-3, complainants [sic] against Departmental Personnel shall be categorized as Class I or Class II offenses. Once the investigation was completed, the CPRA categorized the supervisory allegation for Sgt. Negrete (Allegation 6) as a Class II violation.

Class I and Class II violations per DGO M-3 are defined as follows: Class I violations against Departmental Personnel or Procedures, are the most serious allegations of misconduct and, if sustained, shall result in disciplinary action up to and including dismissal and may serve as the basis for criminal prosecution. Class II offenses shall include all minor misconduct offenses.

Per DGO M-3, a Class I violation for a supervisor includes under subsection E., m. (pp. 5), the "failure of a supervisor/manager to properly supervise, and/or take corrective action for misconduct that he/she knew about or reasonably should have known about."

Looking at the Discipline Matrix found under Training Bulletin V-T "Discipline Policy Appendix," there are two types of MOR (Manual of Rules) classes for a supervisor, and two for commanding officers. The more serious offenses are those that involve gross dereliction of duty, which would be Class I violations, and the lesser violations that involve minor misconduct, would therefore be the Class II violations.

MOR 175.99 defines "Gross Dereliction of Duty" as the failure to use reasonable care to protect life and/or property and to safeguard the legal rights of individuals. Gross dereliction of duty is characterized by carelessness and a reckless disregard for the consequences of the member or employee's conduct.

⁷ The CPRA Report does not contain any specific recommendation for the appropriate level of discipline. The July 9, 2019 Disciplinary Committee Report states at page 2 that the CPRA recommended "demotion" in connection with sustaining a Class 2 violation, but that recommendation is not reflected in the available documentation.

Looking at what would be gross derelictions of duty under the Discipline Matrix, there are terminations for conduct such as the following: workplace violence; harassment and discrimination; failure to assist a fellow officer; criminal conduct; intentional search and seizure; planting evidence; failure to obey laws; failure to obey a lawful order; failure to report misconduct; soliciting or accepting gratuities; sexual activity on duty; falsely reporting an illness or injury; consumption of intoxicants; collision with gross negligence; accessing inappropriate websites; illegal uses of force; conduct effecting the security of department business; conduct compromising criminal cases; assisting criminals; belonging to subversive organizations; refusing to testify; interfering with investigations; retaliation; truthfulness; and a refusal to accept or refer a complaint.

There are in these allegations conduct that causes harm to the public service; lack of integrity; conduct that effects the integrity of the department; conduct that is vital to effective law enforcement; conduct that has broken or diminished public trust and confidence; constitutional rights violations; criminal law violations; violence and gross indifference to duty; conduct that is willful and deliberate; or that shows a reckless disregard for consequences. Using this type of conduct as the standard, the CPRA categorized the supervisory allegation for Sgt. Negrete as a Class II violation.

Sgt. Negrete's plan, as discussed in detail in the analysis of Allegation 6, above, was not clear overall. Critical contingencies and steps were missing. The plan failed to consider the facts unique to this situation. Sgt. Negrete for example, failed to envision that Mr. Pawlik might be incoherent, under the influence, or have a mental issue, and might try to get up without dropping the gun and prepare his officers for this-even though he knew before him was a homeless-looking man, who was asleep in the day on someone's lawn. There are many facts demonstrating poor choices and decision making, and flaws in his plan. However, the plan as flawed as it was, cannot be shown to be "willful and deliberate" or made with a "reckless disregard" for consequences. Sgt. Negrete had a plan, and his plan showed many steps that are important considerations in these types of situations such as having lethal and less-lethal force available (beanbags, and initially a Taser); containment of the armed subject; and making sure there was adequate cover. Sgt. Negrete voiced a desire to slow things down, even if he failed to see that his plan if carried out wouldn't have achieved that. He voiced not wanting to use a dog, so that it didn't startled Mr. Pawlik. Sgt. Negrete expressed on scene a desire to resolve the matter peacefully.

The success of other plans that Sgt. Negrete could have put in place are still speculative, and there is no guarantee that they would have succeeded. A different set of plans may indeed have prevented this loss of life, and a supervisor should make such plans and take steps that can help to avoid a loss of life. The plan here was basic, and Sgt. Negrete failed to properly plan necessary contingencies that could have arisen. However, the law does not require a particular plan or that risks be taken. If a person is a lethal threat, an officer has a right to use lethal force whether or not any plan was in place.

A difficult component in determining whether this should have been a Class I or Class II case as to Sgt. Negrete, was deciding how to deal with the inappropriate remarks Sgt. Negrete made to Officer Tanaka after the shooting. Sgt. Negrete said to Officer Tanaka after the shooting, “dude, you had to. He pointed a gun right at us man.” He is also heard on his PDRD at 42:17 saying to Officer Tanaka, “Hey, we had no other option.” This is a knowing violation of OPD rules not once, but twice. It could be considered as an attempt to taint the investigative process. Sgt. Negrete said he was trying to comfort Officer Tanaka, and indeed as seen on PDRD, Officer Tanaka was very distraught after the shooting. Sgt. Negrete did not make any statements to any other of the officers who used lethal force, and therefore the sentiment of wanting to comfort Officer Tanaka seems credible. However, there were other ways of handling Officer Tanaka’s distress. Ultimately, while Sgt. Negrete’s statements were completely unacceptable, and he knew or should have known they were inappropriate, because the intent element is not completely evident that he did it to compromise the criminal case or the IA investigation, it was decided to apply the Class II standard.

f. Compliance Director’s June 27 Supplement to Addendum

Following issuance of the CPRA Report, the Compliance Director responded as follows (p.13):

In general, I concur with the CPRA’s assessment and findings relevant to supervision. I disagree with the CPRA’s assessment of the level of the Manual of Rules violation as it pertains to Sergeant Negrete. As noted in my EFRB Addendum, I agree with the EFRB Chair in his assessment that when examining the circumstances in their totality, Sergeant Negrete’s conduct constituted gross dereliction of duty. The most crucial point the EFRB Chair made is that the outcome of this incident was so severe that it needed to be considered when determining whether Sergeant Negrete’s conduct rose to the level of gross negligence.

Notably, both analyses by the Compliance Director relied principally on the tragic outcome of this incident to justify treating Sgt. Negrete's misconduct as a Class 1 violation of MOR 285.00. While the outcome in this case was certainly an aggravating factor in assessing the appropriate penalty, it is actually not a criterion for determining whether a Class 1 violation occurred under the Department's existing policies.

g. Discipline Committee Recommendation

The July 9, 2019 Report of the Discipline Committee noted both the CPRA's conclusions and the Compliance Officer's conflicting recommendations. On page 6 of its Report, the Committee states:

The Committee also finds that Sergeant Negrete failed in his supervision of other officers in violation of MOR 285.00-1 Supervisors-Authority and Responsibilities, Class 1. The allegation against Sergeant Negrete in that regard is sustained.

The Committee concludes that TERMINATION is the appropriate discipline.

h. Skelly Officer Gennaco's Recommendation

Addressing this issue Skelly Officer Gennaco states (p. 21):

This Skelly officer finds the analysis of the EFRB sound. Most compelling in support of a finding of gross negligence and dereliction of duty was the articulation of the series of supervisory mistakes by Sergeant Negrete that left him and his team poorly prepared to address the challenges presented – and the consequential loss of life that emanated from those poor decisions. Moreover, by his unprompted statements to team members immediately after the incident (that the subject pointed a gun at them and that they had to use deadly force), Sergeant Negrete corrupted the investigative process before it could even begin by undermining the ability of each involved officer to relate their observations and actions free from outside influence.⁴

⁴ Sergeant Negrete's almost immediate statements to other involved officers seriously calls into question whether those officers' subsequent recitations were based solely on their own observations and not influenced by their team leaders' assertions.

4. Summary of Step 3 Meeting

During the Step 3 meeting, Sgt. Negrete's attorney Mike Rains, addressed the imposition of discipline and the nature of a "failure to supervise."

First, Mr. Rains argued that Sgt. Negrete unfairly received harsher discipline than Lt. Yu, his commanding officer. Since Sgt. Negrete ran his decisions by Lt. Yu, Mr. Rains argued, just cause could not exist for disciplining Sgt. Negrete if Lt. Yu did not receive the same or a greater level of discipline. When asked if the fact that the same law firm represented Sgt. Negrete and Lt. Yu undermined this argument, Mr. Rains responded that he had not communicated with Steve Welch, Lt. Yu's attorney, about how to argue Lt. Yu's case, but that if he had been given the choice he would have avoided the appearance of a conflict of interest.

Next, Mr. Rains discussed the quality of the training that Sgt. Negrete received, stressing that although Sgt. Negrete had received on-the-job training as an Officer, he had not received any formal training on DATs, or any on-the-job training as a supervisor. Sgt. Negrete's on-the-job training as an officer did not involve any DAT incidents similar to the one involving Pawlik. Additionally, while RBT (reality-based training) included training for dealing with unresponsive persons, such training did not occur outside of the basic academy. Mr. Rains contended that this lack of training constituted a significant mitigating factor when determining whether (and how) to discipline Sgt. Negrete.

In the meeting, Sgt. Negrete was also asked several questions regarding whether he could have done anything better. He stated that given his limited resources and personnel, he could not have come up with significant changes he should have made. Sgt. Negrete also clarified that his statement that if Pawlik wakes up, "we will deal with him" meant only that the Officers would deal with Pawlik in accordance with their training. When asked if his decision to take a rifle undermined his ability to manage the situation as a team leader, Sgt. Negrete responded that it would not have made any difference either way.

Additionally, Sgt. Negrete discussed the quality of the commands given to Pawlik. While he acknowledged that his subordinates had given Pawlik conflicting commands, he also noted that those inconsistent commands were given early on and that he gave many commands – including commands in Spanish – to allow Pawlik a chance to surrender. When asked about a team leader's responsibility to ensure consistent commands, Sgt. Negrete acknowledged this responsibility and explained that was why he took over the responsibility of giving commands.

After offering these arguments, Mr. Rains placed them in the context of recent arbitration decisions. First, these arbitration decisions have held that selective discipline (e.g., discipline that is imposed disparately) fails to meet the requirements of just cause. If responsibility for a

mistake lies with multiple people up the chain of command, then one cannot punish a particular individual alone. Second, Mr. Rains contended that the Department could only establish gross dereliction of duty by pointing to Sgt. Negrete's failure to take a specific action that he had a duty to take. When asked if the OPD could have unwritten rules that were determined by principles of reasonableness, Mr. Rains responded that such rules could not apply in this case because Lt. Yu affirmed Sgt. Negrete's decisions and because any such unwritten rules were not covered in Sgt. Negrete's training.

Finally, Mr. Rains responded to the idea that Pawlik's death was an aggravating factor because Pawlik could have lived if Sgt. Negrete's had made different decisions. Mr. Rains contended that such an argument is wrongly based on speculation; if someone could imagine circumstances where if Sgt. Negrete had changed his decisions circumstances could have ended up better, one could just as easily also imagine circumstances where changes in Sgt. Negrete's decisions could have resulted in more harm.

C. Was Sgt. Negrete's Failure to Supervise a "Class 1" or "Class 2" Violation?

The analysis in Section B.2 above makes clear that the standard applicable to a Class 1 violation is exceptionally high. A Class 1 violation requires far more than negligence: instead, it requires both "carelessness" and a "reckless disregard for consequence." At least one persuasive authority – relied upon by Arbitrator Gaba in the decision cited above – indicates that recklessness involves more than "inadvertence, incompetence, unskillfulness, or a failure to take precautions," but rather must involve conduct that rises to the level of a "conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it."

In this case, all reviewers confirmed that Sgt. Negrete's plan, as analyzed in detail above, had a number of critical flaws and omissions. As indicated by Sgt. Haney during his IAD presentation to the EFRB, all personnel are trained to prepare for at least three main responsibilities of a DAT: (1) accept surrender of the subject; (2) prevent the subject's escape; and (3) react to exigent circumstances. When reviewing the testimony and plan by Sgt. Negrete, it is apparent that he conceived and briefed adequate plans for the first two responsibilities, but did not put any plan in place for how the DAT should react to an exigent circumstance. Sgt. Haney wrote in his report, "The potential for Pawlik to awaken and not respond to the officer commands was a realistic possibility that should have been planned for."

It would probably be understatement to characterize Sgt. Negrete's errors and omissions as merely "negligent." His lack of planning for the key contingency, his decision to join in as a shooter rather than maintain supervisory overview, his failure to control the delivery of messages to Pawlik, and his lining up of four officers within proximity to Pawlik rather than creating time and distance from Pawlik can all reasonably be viewed, both individually and in combination, as

careless and grossly negligent. Based on his conduct, however, it would be incorrect and unfair to impute Sgt. Negrete with making a conscious choice with knowledge of consequences, or having a malicious motive. In fact, Sgt. Negrete's plan showed many steps that are important considerations in these types of situations, such as having lethal and less-lethal force available (beanbags, and initially a Taser); containment of the armed subject (Inner and Outer Perimeters set); an arrest officer; and making sure there was adequate cover. Similarly, Sgt. Negrete called for the Bearcat because he realized that approaching the suspect would potentially place his officers in unnecessary harm's way. Although the wisdom of his choice to not use a K-9 is debatable, the fact is he did consider it for reasons that are not meritless. Sgt. Negrete also voiced a desire to slow things down, a basic premise to supervising an active scene, even if he failed to see that his plan would not achieve that goal because it relied on Pawlik not awakening on his own and then cooperating with the officers once he did awaken.

Sgt. Negrete also expressed a desire while on the scene to resolve the matter peacefully. In this regard, Sgt. Negrete took a number of appropriate steps to protect life of citizens and his officers, and he made a good faith effort to take Pawlik into custody safely. There is nothing to indicate that Sgt. Negrete did not intend a peaceful ending, and his plan had components that could have resulted in such an ending. Once Pawlik awakened, however, the lack of contingencies became apparent and any opportunity to rewrite the plan or stop time was lost because events unfolded too quickly.

Two other considerations are relevant. First, Sgt. Negrete's plan was reviewed and authorized by Lt. Yu, who was the senior commanding officer on scene. There was also at least one other supervisor on scene, as well as multiple well trained and tenured officers, none of whom expressed any issue with the plan or offered any different suggestions. It is particularly unreasonable to single out Sgt. Negrete's failures as a Class 1 offense while reversing Lt. Yu's demotion and conferring a five day suspension on him instead. A Class 1 violation based on conduct that was approved by a commander would ordinarily be inappropriate, and is all the more inappropriate in this case because Lt. Yu's own misconduct was set at Class 2 rather than Class 1.

Second, as referenced in the companion Report and mentioned supra, the Department did not have a policy or training bulletin that addressed how to deal with unconscious armed persons, despite the fact that there were two incidents before the present case wherein the lack of such a policy was known to be a factor in the death of suspects. The Department's later-adopted policy providing specific guidance for such situations and establishing preservation of human life as a basic predicate is highly relevant, as it provides crucial guidance and direction that was not available to Sgt. Negrete when he made his flawed DAT plan.

Finally, a comparison of the rationales used at the various review levels to decide whether to find a Class 1 or Class 2 violation is revealing. The Chief, CPRA and one of the three voting members of the EFRB all appropriately focused on the high threshold set by MOR 175.99. In contrast, the analyses of those who advocated for finding a “Class 1” violation did not apply the rules established by DGO M-3 and Training Bulletin V-T, and instead focused on the outcome of the incident. While the outcome is highly relevant as an aggravating factor in considering the appropriate disciplinary penalty, it is not a definitional element for distinguishing between a Class 1 and Class 2 offense. Relying on the outcome to deem Sgt. Negrete’s actions a Class 1 violation was effectively a re-write of the Class 1 criteria.

The prior arbitration award articulated and applied a coherent and comprehensive interpretation of Class 1 parameters. The Class 1 interpretation of Sgt. Negrete’s conduct was not consistent with that reasonable interpretation, and it did not take it into account. Looking to the existing standards as defined in Departmental policies and rules, I believe the CPRA, IAD and later Chief Kirkpatrick all correctly categorized Sgt Negrete’s alleged Failure to Supervise in violation of MOR 285.00 as a Class 2 violation. The lack of contingencies in Sgt. Negrete’s plan was a significant error, and in some ways negligent, but negligence by definition is very different from reckless and deliberate disregard. Although Sgt. Negrete’s planning and supervision was lacking in a significant degree, his conduct does not appear “willful and deliberately” reckless, or to have occurred with careless disregard.

VII. THE APPROPRIATE PENALTY

As is emphasized in the companion Report, the concept of “just cause” is embedded in Article X of the Memorandum of Understanding (MOU) between OPOA and the City as a mandatory requirement for discipline. Employees who dispute their discipline have a right to final and binding arbitration, meaning that judicial review of the arbitration decision is unavailable except on very limited grounds. When an arbitrator decides that just cause does not support the charges, they will be vacated. When an arbitrator sustains charges but believes that the discipline was excessive, the discipline will not be sustained and will be reduced.

A. Application of Just Cause Principles

In the present case, none of the reviewers applied just cause in determining what penalty was appropriate disciplinary penalty.

1. Aggravating and Mitigating Factors

The range of typical penalties for a first offense Class 2 violation of MOR 285.00 is counseling to a five (5) day suspension. (See Training Bulletin V-T.) That range, however, is only a starting point. Mitigating and aggravating factors must be applied to determine the actual discipline

appropriate in each specific case. As both the Disciplinary Policy and Disciplinary Appendix make clear, “[i]n all cases, the Chief of Police retains full discretion to impose any level of discipline, which he/she deems appropriate to achieve the goals of the discipline policy.” (Emphasis added.)

The mitigating factors in this case are significant. Sgt. Negrete has a good job record, with this incident giving rise to his first offense in his job history with the Department. As discussed above, he made errors but he also did many things right in managing the Pawlik situation. The fact that he got clearance from his commander for the deficient plan both indicates a recognition of chain of command and, more importantly, points to his commander Lt. Yu as an additional offender in the chain of events that led to the shooting.

The lack of training in specific areas is also noteworthy. As noted in section IV.D.4, *supra*, Sgt. Negrete’s decision to involve himself as an active participant rather than confining his role to supervising the response was not inconsistent with current training, which allowed for much flexibility in the areas of concern. Also, the specific fact pattern in this case – unconscious person with a gun – was previously spotted as a serious problem before Pawlik, but the department did not create and implement such training until the Compliance Monitor put it in motion as part of a stunning post-Pawlik critique. As was previously addressed, due to the work of a citizen’s subcommittee, at the urging of the Compliance Director and federal court, the Department implemented a progressive approach focused on how to safely secure the arrest of suspects under such circumstances. If that policy had been implemented before Sgt. Negrete implemented his DAT plan, the results of the incident may have been very different.

The aggravating factors are also significant. Although there is no evidence Sgt. Negrete had any bad motive, his conduct was, as detailed above, well more than merely negligent. His serious errors and omissions, in combination with those of Lt. Yu, collectively gave rise to a situation where four rifles and one beanbag weapon were all pointed at close range at Pawlik, an unconscious subject with a gun in his hand, who was then startled into motion (likely by the sound of the Bearcat’s motor). The fatal result of that setup was predictable, and the consequences were grave: An Oakland resident was killed when 22 bullets entered his body, which in turn resulted in litigation by Pawlik’s family that was settled by the City for \$1.4 million. As noted *supra*, this factor does not justify deeming his violation of MOR 285.00 to be a Class 1 violation, but it *is* relevant to determining the appropriate penalty. Further, Sgt. Negrete’s statement to Officer Tanaka immediately after the shooting to the effect that the officers had no choice but to shoot Pawlik could be viewed as an effort to influence officer statements in the ensuing investigations. His failure to properly sequester officers is a further aggravating factor.

2. Disparate Treatment

In balancing the conflicting factors, we must also bear in mind a recurring fact pattern in OPD discipline: conferring more beneficial treatment to managers of incidents than to lower ranked officers involved in the same events. As Mr. Rains noted in the Step 3 meeting, this has occurred in a number of serious cases in the past ten years. In each such case where the dispute was ultimately arbitrated, the arbitrators' perceptions of disparate treatment and scapegoating caused them to significantly reduce the original penalty.

For example, on March 17, 2010 Arbitrator Harris decided a case where a Sergeant was accused of: (b)(3) (2) failing to supervise his team or follow procedures, resulting in the shooting death of a civilian; and (b)(3). Arbitrator Harris found that the City had not met its burden of establishing just cause for termination. Noting the disparate treatment of grievant the Arbitrator reasoned that the City seemed to have placed all blame for possible violations of procedure on the Sergeant while failing to hold more-senior level officers to account for their role in the incidents. As the Arbitrator explained (at p. 41), "[a]t the heart of the City's argument is the contention that the Grievant acted outside the scope of what his commanders had approved. This contention is unsupported by the evidence. Lt. [redacted], the tactical commander, unequivocally explained that the Grievant executed the plan *which had been approved by his superiors at the command post*. . . the weight of the evidence establishes that the Grievant executed the plan *as authorized by his superiors*." (Emphasis added.) As a result, the Arbitrator held that there was no just cause for any disciplinary action, and that the Sergeant was to be reinstated to his former position and made whole for lost wages and benefits.

In another case decided by Arbitrator Greenberg on May 15, 2013, a Lieutenant and Captain were accused of gross dereliction of duty in connection with the response to a shooting that resulted in the deaths of four officers. In finding that the City had not met its burden to establish just cause for demoting the officers, the Arbitrator found that the grievants had been improperly singled out for discipline when others more senior in rank who were also present and participated in the decision-making were not similarly held accountable. The Arbitrator explained at page 121), "the City's decision to single out Lt. [redacted] and Capt. [redacted] for discipline does not adequately recognize the responsibility of others – including their organizational peers, and also some of the senior management of the Department. . . the decision to discipline Lt. [redacted] and Capt. [redacted] has the appearance of the Department needing to hold *someone* individually accountable for the tragic deaths of Sgt. [redacted] and Sgt. [redacted], but not considering the possibility that senior-level management decisions also contributed to the chain of events." Because of this, the Arbitrator ordered both grievants restored to their prior positions, with back pay, benefits, and seniority.

In a case decided by Arbitrator Bergeson on December 30, 2014, two officers were given 15-day suspensions for improper use of force (b)(3)

Despite this significant difference in the facts leading up to the officers' use of force, the officers were initially given the same discipline. The Arbitrator rejected that result, upholding the first officer's discipline but finding that just cause did not support a 15-day suspension for the second officer.

Similarly, in a case decided by Arbitrator Gaba on December 8, 2015, an Administrative Acting Sergeant without regular supervisory duties was assigned as an Acting Sergeant to supervise a squad during a protest. The City sought to impose a five-day suspension for gross dereliction of duty (b)(3)

Instead, the Arbitrator found that the evidence only supported a finding that the grievant committed minor violations of the City's rules, which could result in no more than a written warning. He then reduced the five day suspension to a written reprimand and made grievant whole for any loss of pay or benefits.

As discussed in the next section, these arbitration decisions must be given appropriate weight in this case.

B. Recommendation Regarding Appropriate Level of Discipline

This case has morphed *from* a termination for excess use of force and Class 1 failure to supervise to a recommended "exonerated" finding on the use of force allegations and a Class 2 finding on failure to supervise. The case presents a challenge and opportunity to re-assess the appropriate level of discipline for Sgt. Negrete. To seize that opportunity, mitigating and aggravating factors, departmental disciplinary standards, past practices, and considerations of equal treatment between lower and higher ranked officers must be taken into account.

Determination of the specific level of discipline appropriate for Sgt. Negrete's Class 2 violation of MOR 285.00 (Failure to Supervise) is best reserved for the appointing power. If, however, this Report will not be reviewed by the appointing power, I recommend as follows.

In my view, demotion is too far outside the range for Sgt. Negrete's first offense Class 2 violation, particularly given that Lt Yu's demotion was reduced to a five day suspension. That reduction means that imposing anything greater than a suspension on Sgt. Negrete would be problematically disparate. However, there are also some key differences between the two cases that support a more serious penalty for Sgt. Negrete than for Lt. Yu, based on the Sergeant's greater direct culpability. In particular, not all of what Sgt. Negrete is faulted for was known or approved by Lt. Yu. Further, the aggravating circumstances, including the outcome of the incident and his post-incident conduct –must be weighed against the mitigating circumstances – job record and training considerations in particular. Taking all these considerations into account, a 30 day suspension is minimally appropriate, even though the typical range of penalties for a Class two violation of MOR 285.00 as set forth in the Disciplinary Appendix tops out at a five day suspension. The "typical," however certainly does not apply to this exceptionally serious and uniquely troubling situation. Further, the Disciplinary Policy and Disciplinary Appendix both make clear that in all cases the Chief of Police "retains full discretion to impose *any* level of discipline, which he/she deems appropriate to achieve the goals of the discipline policy." (Emphasis added.)⁸

VIII. CONCLUSION

Based on the foregoing, it is my recommendation that the allegations of unlawful use of force (violation of MOR 370.27) be "exonerated." It is also my recommendation that the allegation of Failure to Supervise in violation of MOR 285.00 be "sustained," but as a Class 2 rather than Class 1 offense, primarily because of Class 1's very high threshold. If the appointing authority does not review the level of discipline based on the recommended findings and conclusions herein, I recommend that the disciplinary penalty be set as a 30 day suspension.

⁸ An anomaly also exists in this case: Lt. Yu and Sgt. Negrete were both represented by the same law firm in the post-incident processes. This is a rather unsavory situation on two levels. In this specific case, it gave the lower level officer (Sgt. Negrete) a disparate treatment argument based on his law firm's success in reducing the level of discipline for the higher level officer (Lt. Yu). More generally, there is, of course, the potential for common representation of multiple subjects in the same IA investigation to enable coordination and/or collusion, or at least provide a basis for inferring such misconduct. That said, there is no evidence of improper coordination or collusion in this case.